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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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Organization: American College of Gastroenterology

General Comment

The American College of Gastroenterology (ACG) is pleased to respond to this Request for Information (RFI) regarding the development of an Artificial Intelligence (AI) Action Plan. ACG appreciates that the Trump Administration is seeking public input to help define policy priorities and actions for AI. AI has already been integrated into many aspects of our daily lives, and its role will continue to expand, influencing all areas of our lives, including healthcare. A framework to guide future actions related to AI is essential.

ACG leaders have been actively engaged in the development of AI in GI, working with subject-matter experts in our specialty to harness the benefits to patient care as well as overcoming the challenges medical providers and practices experience to achieve this goal. As such, we also want to convey the importance of including clinicians and medical organizations in future discussions and initiatives related to AI. In response to the RFI on the development of an AI Action Plan, ACG makes the following recommendations:

As the federal government develops its AI policy priorities and actions, healthcare must be incorporated into these plans.

The adoption of AI across the healthcare continuum raises several issues that must be incorporated into an AI Action Plan, including the development of a reimbursement pathway to ensure continued innovation; the development of a framework to ensure the safe, effective, and trustworthy use of AI; clarification of responsibility and liability in the use of AI; and the need for appropriate oversight by medical professionals in the deployment of AI.

We urge policymakers to engage with healthcare professionals and organizations such as ACG as they develop AI policies. The healthcare space is unique in its direct impact on patient care. Healthcare professionals can provide clinical expertise to ensure the accuracy and benefits of AI systems.

Attachments

AI RFI - ACG - March 2025



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March 15, 2025

Mr. Faisal D'Souza
Networking and Information Technology Research and Development (NITRD)
National Coordination Office (NCO)
National Science Foundation
2415 Eisenhower Avenue
Alexandria, VA 22314

RE: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear Mr. D'Souza:

The American College of Gastroenterology (ACG) is pleased to respond to this *Request for Information (RFI) regarding the development of an Artificial Intelligence (AI) Action Plan*. ACG appreciates that the Trump Administration is seeking public input to help define policy priorities and actions for AI. AI has already been integrated into many aspects of our daily lives, and its role will continue to expand, influencing all areas of our lives, including healthcare. A framework to guide future actions related to AI is essential.

ACG is a physician organization representing gastroenterologists and other gastrointestinal (GI) specialists. Founded in 1932, and representing over 20,000 GI clinicians, ACG's mission is to enhance the ability of our members to provide world class care to patients with digestive disorders and advance the profession through excellence and innovation based upon the pillars of patient care, education, scientific investigation, advocacy, and practice management.

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- We urge policymakers to engage with healthcare professionals and organizations such as ACG as they develop AI policies. The healthcare space is unique in its direct impact on patient care. Healthcare professionals can provide clinical expertise to ensure the accuracy and benefits of AI systems.

Incorporation of Healthcare into AI Policy Priorities and Actions

In reviewing the *RFI on the Development of an AI Action Plan*, ACG was disappointed that healthcare was not identified in the “relevant AI policy topic(s) list.” We urge you to address this oversight. Healthcare is a substantial portion of the American economy. In 2023, healthcare spending was an estimated 17.6% of the United States Gross Domestic Product.¹ The AI footprint in healthcare is already significant and is expected to grow rapidly. The global AI healthcare market size was estimated at \$19.27 billion in 2023 and is expected to grow at a compound annual growth rate of 38.5% from 2024 to 2030.²

To understand AI's role in healthcare, it might be helpful to go beyond these numbers and consider a practical example. A typical gastroenterology practice utilizes and is impacted by AI in numerous ways.

Administrative Tasks	• Automated data entry and billing • Transcribing medical notes • Inventory management
Diagnosis/Treatment	• AI enabled detection of cancerous and non-cancerous lesions and polyps; detect bleeding allowing for earlier intervention; GI pathology; and generation of procedural reports • Provide office visits through telemedicine • Monitor patient through remote monitoring technology • Diagnosis and risk prediction of GI disorders to inform management

¹ Centers for Medicare and Medicaid Services (CMS). (2024). *National Health Expenditures 2023 Highlights*. Accessed March 7, 2025; <https://www.cms.gov/files/document/highlights.pdf>.

² Grand View Research. (2024). *AI In Healthcare Market Size, Share & Trends Analysis Report By Component (Hardware, Services), By Application, By End-use, By Technology, By Region, And Segment Forecasts, 2024 – 2030*. Accessed March 7, 2025; <https://www.grandviewresearch.com/industry-analysis/artificial-intelligence-ai-healthcare-market>

Patient Communications	• AI-enabled chatbots can answer patient questions or assist in scheduling appointments • AI can assist in language translation services
Interactions with Payor	• AI may be used by insurers to process claims and prior authorization requests

AI is reshaping healthcare research, transforming how we diagnose and treat patients and the administrative workflows of healthcare delivery. The breakthroughs of AI in healthcare hold enormous promise to improve patient care, reduce costs, and advance research. These transformative benefits of AI can only be achieved with an appropriately balanced regulatory framework that allows for innovation and the deployment of safe and effective AI technology in the healthcare space.

These factors, combined with unique aspects of healthcare that directly impact health and well-being, make it imperative that healthcare be included in and is a prominent component of any national action plan on AI. ***ACG recommends the incorporation of healthcare in the national AI Action Plan.***

Key Issues for Consideration in the Adoption of AI Across the Healthcare Continuum

The adoption of AI across the healthcare continuum raises several issues, including the development of a reimbursement pathway to ensure continued innovation; the development of a framework to ensure the safe, effective, and trustworthy use of AI; clarification of responsibility and liability in the use of AI; and the need for appropriate oversight by medical professionals in the deployment of AI.

Reimbursement Pathway

AI is used to develop technology to help diagnose and treat patients. While not an exhaustive list of AI-enabled medical technology, the U.S. Food and Drug Administration maintains an AI/Machine Learning (ML)-Enabled Medical Device List of all AI/ML-enabled medical devices authorized for marketing in the United States. The list contains 1,016 entries for medical devices used across many specialties. For gastroenterology, AI-enabled technology is used for image recognition analysis, clinical data analysis, and practice management.

Physician services are described by CPT® codes that are reported on claims for reimbursement. The annual CPT book, published by the CPT Editorial Panel of the American Medical Association (AMA), has developed a helpful framework to categorize AI technology in a medical context. As described in the figure below, CPT categorizes AI technology as assistive, augmentative, and autonomous. A reimbursement pathway must be developed for all three types of AI-enabled technology.

Service Components	AI Category: Assistive	AI Category: Augmentative	AI Category: Autonomous
Primary objective	Detects clinically relevant data	Analyzes and/or quantifies data to yield clinically meaningful output	Interprets data and independently generates clinically meaningful conclusions
Provides independent diagnosis and/or management decision	No	No	Yes
Analyzes data	No	Yes	Yes
Requires physician or other QHP interpretation and report	Yes	Yes	No
Examples in CPT code set	Algorithmic electrocardiogram risk-based assessment for cardiac dysfunction (0764T, 0765T)	Noninvasive estimate of coronary fractional flow reserve (FFR) (75580)	Retinal imaging (92229)

Source: CPT 2025 Professional Edition, Appendix S, American Medical Association.

The healthcare community's current challenge is that there is no methodology to capture the costs of AI-enabled technology that may enhance or improve medical treatment. There is a lag between the development of AI-enabled technology and the establishment of reimbursement pathways to capture its costs. A lack of a clear reimbursement pathway will discourage innovation and reduce developers' interest, resulting in patients who will not be able to benefit from these advances.

While there will not be a one-size-fits-all reimbursement solution for AI technology, reimbursement is key to ensuring the continued innovation of AI-enabled technology and improving patient access.

Current AI-enabled technology has demonstrated how it can transform the clinician's and patient's experience. It also has the potential to save the system money. Without a pathway for reimbursement, we fear innovation will be stifled, patients will lose the benefits that AI can provide, and any future expectations of cost savings to the system will not be achieved. ***ACG recommends that the current reimbursement landscape be considered in developing the AI Action Plan, and prioritization is given to establishing reimbursement pathways.***

Assuring Safe, Effective, and Trustworthy Use of AI

The output of AI-enabled technology depends on a set of underlying data. This data consists of information or inputs that train the AI model to make predictions or decisions. Consequently, the output of any AI-enabled technology is only as good as its underlying data. Standards, frameworks, and best practices for collecting and using data in developing AI-enabled technology should be established to ensure the data is sufficiently robust. This approach would resemble how standards are created in other scientific endeavors.

For example, physicians typically rely on guidelines developed by experts in the field to help determine a course of treatment for a particular patient. They have confidence in

these guidelines because they were developed using a rigorous set of standards known and generally accepted by the medical community.

A recent AMA survey on AI provides further evidence of the need to develop standards and improve oversight in developing AI-enabled technology to ensure its continued adoption. The survey found that while there is growing enthusiasm within the physician community for AI, increased oversight ranked as the top regulatory action needed to increase physician confidence and adoption of AI.³

The diffusion of AI-enabled technology within the healthcare field is incredible. ACG is optimistic about its potential to improve patient care and the overall delivery of healthcare. AI devices are being developed in various environments, from small practices to large academic health centers and private companies. Physicians and other medical professionals are using these devices, which can have life-and-death consequences for patients. ACG believes some standards are needed to ensure the safe and effective development of these technologies. This will assure both clinicians and their patients that these devices can be safely used. **ACG recommends that the AI Action Plan include developing standards for collecting and using the underlying data in AI-enabled technology to ensure its safe and effective use.**

Responsible Use of AI and Medical Liability

Like any medical technology, AI-enabled technology comes with risks. With the rapid pace of the introduction of AI-enabled technology in the medical field, there is a critical need for clarity and consistency in determining the responsible use of AI and medical liability when errors occur. The current regulatory framework for medical liability is inadequate. The development of AI-enabled technology introduces variables that may not apply in the current environment and raises new medical-legal issues. Neither patients nor clinicians will feel comfortable using this technology (or conversely *not* using AI in the future) unless the framework for responsible use and determination of liability is transparent. Standards for the safe use and medical liability must be part of any national strategy around AI. **ACG recommends that the AI Action Plan address AI-enabled technology's safe use and medical liability.**

Appropriate Oversight by Medical Professionals

A growing use of AI-enabled technology by private payors is the use of AI for prior authorization and other claims processing activities. AI-enabled prior authorization has the potential to significantly cut down on time-consuming manual tasks for clinicians and the payor. Algorithms can also be used to determine if a requested treatment and submitted justification documents comply with the medical criteria used by the plan. Algorithms can be used to triage prior authorization decision-making to an appropriate reviewer.

³ American Medical Association. (2025). *AMA Augmented Intelligence Research Physician sentiments around the use of AI in healthcare: motivations, opportunities, risks, and use cases*. Accessed March 9, 2025; <https://www.ama-assn.org/system/files/physician-ai-sentiment-report.pdf>.

While these are appropriate uses for AI, ACG is very concerned with using AI for prior authorization decisions made without review by an actual human. Trained medical professionals need to make these critical medical decisions that can profoundly impact the trajectory of a patient's treatment and eventual health outcome. There have been real-world examples of payors making prior authorization decisions using AI-enabled technology without medical professionals' review and input. Some states have started passing legislation to bar this practice. Effective January 2025, legislation in California mandates that a qualified human individual must review prior authorization requests.⁴ A number of other states have also introduced a variety of legislation related to the use of AI-enabled technology by insurers.⁵ Federal leadership is needed to set the standards for appropriate medical oversight of AI-enabled technology. ***ACG recommends that the AI Action Plan incorporate the need for proper medical oversight of AI-enabled technology.***

Engagement of Healthcare Professionals in the Development of AI Policies and Priorities

ACG was delighted that the Administration released an RFI for developing an AI Action Plan. AI is having a revolutionary impact on not just healthcare but on all aspects of life. It has the potential to drastically improve health outcomes, reduce burdens on clinicians, and provide savings to the overall health system. However, it also carries significant risks in these same areas, and therefore, a thoughtful and responsible approach is needed to help guide its growth and development. Healthcare is an especially critical and complex area for AI. ***We urge the Administration to work closely with the medical community as it develops policies and activities around AI. ACG offers itself as a resource to the Administration, and we would welcome the opportunity to continue this meaningful conversation with you and other decision-makers in the Administration.***

Thank you for the opportunity to submit these comments, and we hope to continue to engage with the Administration on this critical issue. Please contact Brad Conway, Vice President of Public Policy, Coverage & Reimbursement, at [REDACTED] or [REDACTED] with any questions.

⁴ Becker, Josh. (2024). *Landmark Law Prohibits Health Insurance Companies From Using AI To Deny Healthcare Coverage*; press release; accessed on March 10, 2025; <https://sd13.senate.ca.gov/news/press-release/december-9-2024/landmark-law-prohibits-health-insurance-companies-using-ai-to>

⁵ American College of Radiology. (2025). *State Legislators Introduce Artificial Intelligence Bills*. Accessed on March 10, 2025; <https://www.acr.org/News-and-Publications/State-Legislators-Introduce-Artificial-Intelligence-Bills>